



5 months ago

Dear [REDACTED]

"The "Silo" as Legal Liability: The Collective Knowledge Doctrine

The primary legal rebuttal to Google's "Silo Defense" lies in the Collective Knowledge Doctrine.

In corporate jurisprudence, a corporation is treated as a single legal person. It cannot evade liability for fraud or misrepresentation by compartmentalizing knowledge between different departments.

The doctrine of "Aggregation of Corporate Knowledge" establishes that the knowledge of a corporation is the sum of the knowledge of all its employees and agents.

This principle was famously affirmed in *United States v. Bank of New England* (821 F.2d 844), where the First Circuit Court of Appeals held that a corporation cannot plead ignorance by dividing duties.

The court stated:

"Corporations compartmentalize knowledge, subdividing the elements of specific duties and operations into smaller components. The aggregate of those components constitutes the corporation's knowledge of a particular operation."

Applying this to the Google Standoff:

- 1.) Component A (Google Skills): Knows that the Cybersecurity Certificate is marketed as a "job-ready" qualification for Cyber Defense roles and that users are paying for this "access".
- 2.) Component B (Google Hiring): Knows that the ATS filters for the "Cyber Defense" role will not privilege a certificate holder and will instantaneously reject certificate holders, regardless of the certificate.
- 3.) Aggregated Knowledge: Therefore, Google (the legal entity) knows it is selling a certificate that it knows is insufficient to pass its own hiring filters.

This aggregation destroys the defense of "lack of intent."

Under the Collective Knowledge Doctrine, the corporation is deemed to possess the combined knowledge of both silos.

Selling a product with the constructive knowledge that it is defective (i.e., unrecognized by the seller's own system) constitutes a deceptive trade practice.

Recent legal scholarship and judicial reasoning have expanded on this via the concept of "Structural Scienter." This theory posits that a corporation's internal design—its choice to "silo" information—can itself be evidence of culpability.

If a corporation designs its compliance and information systems to prevent the flow of knowledge (e.g., preventing the Hiring team from informing the Skills team that the certificate is worthless), this constitutes willful blindness.

The "Functional Corporate Knowledge" theory argues that if the inference of fraud is "less effortful and more obvious" than maintaining the silo, the corporation is liable.

For a data-centric company like Google, integrating its Skills database with its Hiring ATS to ensure certificate holders are flagged for review (rather than auto-rejected) would be technologically trivial.

The failure to do so is not a technical limitation but a strategic choice.

[REDACTED] it could only be correct to argue this choice creates a "Diffusion of Accountability", the organization effectively designed to evade the consequences of its own marketing."

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Sincerely,

[REDACTED]



[REDACTED]
5 months ago

Hi [REDACTED]

Thank you for being so open and for the deep dive you've shared here. It is clear that your respect for Google's mission is matched by your dedication to the principles of stewardship and accountability.

The perspective you've brought forward especially the "Silo Defense" and the "Collective Knowledge Doctrine" adds a serious academic and legal layer to the "ethical misalignment" you first pointed out. I hear you clearly: your goal isn't to attack, but to push for a system that actually lives up to its own promises.

As much as I've appreciated our back-and-forth, I have to be honest about where my role ends. I am part of the educational support team, and I simply don't have the authority or the technical access to dismantle the "silos" or manually override the hiring filters of a different department.